BOAT MOORING AND STORAGE AGREEMENT (CONTINUED)

11. Patron further agrees to strictly follow the terms and conditions of this Agreement and the rules and regulations of the MWR Marina, which are incorporated by reference as though fully set forth herein. Patron further understands that any violation on the Patron's part, or Patron's agents, guests, and/or invitees and other persons, may constitute grounds for immediate termination of this Agreement at the option of the MWR Marina.

12. Patron agrees that in the case of a natural disaster, e.g., hurricane, typhoon, etc., vessel and trailermay be removed and relocated as circumstances dictate. While the MWR Marina will take reasonable measures to protect vessels moored at MWR facilities, the Patron shall be responsible for moving the vessel described above to a safe berth if time permits. Vessels not removed prior to a hurricane, or other natural disaster, of which the public has prior notice, shall be left at the facility at the Patron's personal risk.

13. This Agreement is governed by the admiralty and maritime laws of the United States of America and any and all disputes between the parties arising under this agreement shall be subject to the exclusive jurisdiction of the United States District Court for the Northern District of California (for Pacific Fleet Commands and facilities), or either the Southern District of New York or the Eastern District of Virginia (for Atlantic Fleet Commands and facilities, and all other Commands and facilities).

14. This agreement represents the parties' complete understanding of the entireagreement and no modification or alternation of this agreement may be made exceptin writing, and signed at the bottom by or on behalf of both parties.

15. By signing and dating this agreement, the MWR Marina and the Patron certify that each party has been provided a copy of the Agreement and advised to SPECIFICALLY READ ALL THE ITEMS HEREOF AND TO SEEK COMPETENT LEGAL ADVICE BEFORE EXECUTING THIS AGREEMENT.

_____ _____
(DATE) (OWNER)

_____ _____
(DATE) (OWNER)

_____ _____
(DATE) (OWNER)

_____ _____
(DATE) (MWR Representative)

PRIVACY ACT STATEMENT

AUTHORITY: 5 U.S.C 301 Departmental Regulations and Executive Order 9397 (SSN).

PRINCIPAL PURPOSE: To document boat mooring and storage services provided by Morale, Welfare and Recreation (MWR) Marinas to MWR patrons, who request permission to moor/store their privately owned vessels, and to obtain an agreement from the MWR patron on the terms and conditions of this agreement.

ROUTINE USES: Used by MWR personnel to track boat mooring and storage services.

DISCLOSURE: Voluntary. However, failure to complete form may result in inability to obtain MWR boat mooring and storage services.